Questionnaire: Sun Pharma – Organon

MN-35035

Deadline to respond: 30 October 2026

Sun Pharmaceutical Industries Limited (**Sun Pharma**) through a wholly owned subsidiary, proposes to acquire 100% of the shares of Organon & Co. (**Organon**) (**Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below **by 30 October 2026** via email to mergers@accc.gov.au with the title *Submission re: Sun Pharma - Organon.* The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with the title *Request for call re: Sun Pharma – Organon*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

The Acquisition

The ACCC is currently assessing Sun Pharma's proposed acquisition of 100% of the shares in Organon.

The Acquirer – Sun Pharma

Sun Pharma is a global specialty generics pharmaceutical company present in over 100 countries. Sun Pharma's portfolio includes cardiology, psychiatry, neurology, gastroenterology and dermatology.

In Australia, Sun Pharma is involved in the supply and distribution of dugs across (i) patented medicines, (ii) retail/hospital Sun Pharma branded generics, and (iii) white label generics.

The Target - Organon

Organon is a global healthcare company present in 140 countries and territories. Its portfolio is focused on women's health, biosimilars, and general medicines.

Overlap between the Parties

In Australia, the Parties overlap in the supply of statins, selective serotonin agonists for migraine treatment, atypical antipsychotics, antidepressants and mood stabilisers.

The Parties also overlap in the supply of antigonadotropin-releasing hormones, specifically in the supply of ganirelix acetate, a gonadotropin-releasing hormone (GnRH) antagonist used in in vitro fertilisation (IVF) protocols to prevent premature ovulation. Sun Pharma also has a pipeline cetrorelix acetate product, which has applied for PBS listing and is a GnRH antagonist.

- Organon supplies Orgalutran, the originator ganirelix acetate product, which went off patent in Australia in 2018. Orgalutran is manufactured by a third party and distributed in Australia by Alphapharm Pty Ltd.
- Sun Pharma was the first ganirelix acetate generic to enter the market in Australia in 2021 with Ganirelix SUN.

Ferring Agreement

To resolve the competitive overlap between Sun Pharma and Organon with respect to the supply of ganirelix acetate, Sun Pharma expanded its existing global ganirelix outlicencing arrangement with Ferring Pharmaceuticals B.V. (**Ferring**) to Australia (the **Ferring Agreement**). Under this arrangement, Sun Pharma has agreed to grant exclusive commercialisation, distribution, marketing and sales rights for the generic ganirelix product, Ganirelix SUN, in Australia to Ferring. Ferring will take over the commercialisation activities of Ganirelix SUN in December 2026 when the transfer will be completed. Sun Pharma will continue to manufacture Ganirelix SUN to supply to Ferring. Sun Pharma has provided a summary document of the Ferring Agreement which is provided **separately.**

Questions

1. Provide a brief description of your business or organisation, including the types of pharmaceutical products you supply, distribute, prescribe or dispense, and any commercial relationships you have with Sun Pharma or Organon.

2. How closely do Sun Pharma and Organon currently compete in the supply of ganirelix in Australia, taking into account factors such as:

    a. quality and characteristics of the ganirelix products that each supply, such as packaging, ease of patient use, shelf life, innovation.

    b. other factors such as price, service quality and reliability of supply.

3. Identify:

    a. key existing and potential suppliers of ganirelix in Australia; and

    b. their relative competitive strength now and in the future,

    having regard to price and non-price factors.

4. Is the use of generic ganirelix expected to increase in Australia in the future?

    In answering this, please address what factors are likely to influence its uptake (for example, availability, factors specific to ganirelix, patient preferences, pharmacy stocking and dispensing practices, and prescriber practices in relation to generic substitution).

5. Explain whether cetrorelix is a substitute for ganirelix in Australia and whether its use is expected to increase in Australia in the future. Why or why not? Identify any future suppliers of cetrorelix in Australia.

6. If known, describe the contracting or tendering process for the supply of ganirelix to pharmacies. Include in your response any barriers to pharmacists switching suppliers and the factors that may influence this decision.

7. Describe the factors that influence whether pharmacists stock branded and/or generic ganirelix products (for example, pricing, discounts or rebates, wholesale distributors and prescriber or patient preferences). If you are part of a pharmacy buying or banner group, as part of your response address how likely it is that ganirelix suppliers not aligned with your group will compete to supply you.

8. Outline any concerns regarding the impact of the Acquisition on competition, including any concerns with any other products supplied by Sun Pharma and Organon.

9. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

Questions about the Ferring Agreement

10. Describe the extent to which the Ferring Agreement would address any concerns you have in relation to the Acquisition.

11. Provide your view on how effective Ferring would be in supplying ganirelix in Australia and details of any experience with Ferring in respect of the supply of women's health products.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**